

TENTATIVE RULINGS

Fidelity National Title Company

v.

Gregory Bowman, et al.

26CV000710

[Defendant Gregory Bowman's Motion to Set Aside Clerk's Default](#)

[Defendant Gregory Bowman's Emergency Motion for Continuance](#)

[Plaintiff's Motion to Discharge and Dismiss Stakeholder](#)

Hearing Date: September 11, 2026

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Defendant Gregory Bowman's Motion to Set Aside Clerk's Default

The motion of Defendant Gregory Bowman ("Defendant") to set aside the clerk's entry of default filed on July 24, 2026, is **GRANTED**, provided that Plaintiff Fidelity National Title Company ("Plaintiff") either waives the motion's notice defects or stipulates to setting aside the entry of default. If the motion is granted, Defendant shall promptly file his Answer or other pleading within 10 days of the Court's order.

A party has multiple options to challenge a clerk's entry of default. Here, Defendant seeks relief under Code of Civil Procedure section 473, subdivision (b) ("Section 473(b)"), which establishes a six-month deadline for Defendant to seek relief from a default entry due to their "mistake, inadvertence, surprise, or excusable neglect." "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted..." [Code Civ. Proc. § 473, subd. (b).] Relief is discretionary and requires a showing of specific facts demonstrating "mistake, inadvertence, surprise, or excusable neglect." [*Ibid.*; *Lorenz v. Commercial Acceptance Ins. Co.* (1995) 40 Cal.App.4th 981, 989; *Hopkins & Carley v. Gens* (2011) 20 Cal.App.4th 1401, 1410.]

Procedurally, Defendant fails to prove that he served the moving papers on Plaintiff. A noticed motion, like this one, must be served on the parties appearing in the case. [Code Civ. Proc. § 1010.] Defendant may cure the procedural defect, which then allows the Court to consider the motion's merits, if Plaintiff, at the hearing, waives the notice requirement. Alternatively, Plaintiff may stipulate to set aside the entry of default.

Assuming Plaintiff waives notice, Defendant has met his burden of demonstrating that the Court should set aside the entry of default. Section 473(b) relief is appropriate when the defendant failed to respond timely due to a mistaken belief about a fact material to their duty to respond. [*See Lieberman v. Aetna Ins. Co.* (1967) 249 Cal.App.2d 515, 523-524.] In this case, Defendant presents substantial evidence of "surprise, inadvertence, or excusable neglect," including catastrophic injuries, hospitalization, immobility, and inability to prepare filings. He acted promptly after learning of the default. He attempted to file an Answer, but the clerk rejected it and instructed him to resubmit it after the motion is granted. His proposed Answer therefore satisfies the requirement that the motion include a lodged responsive pleading. [Code Civ. Proc. § 473, subd. (b).]

Accordingly, if notice defects are waived or cured at the hearing, the Court will **GRANT** the Motion to Set Aside Default under Section 473(b), conditioned upon Mr. Bowman immediately re-submitting his Proposed Answer or other responsive pleading within 10 days of the Court's order.

The Court will prepare the Order.

Defendant Gregory Bowman's Emergency Motion for Continuance

Defendant Gregory Bowman ("Defendant") requests a continuance of the hearing concerning Plaintiff Fidelity National Title Company's ("Plaintiff") motion to discharge and dismiss stakeholders. This is because of Defendant's medical incapacity, financial hardship, and lack of notice.

Upon considering the papers supporting and opposing Plaintiff's emergency motion, the motion is **DENIED**. First, Plaintiff is in default and is therefore not entitled to notice of Plaintiff's discharge motion [Code Civ. Proc. § 1014.] Second, Plaintiff filed an opposition to the motion. Finally, Mr. Bowman has also filed his set-aside motion.

Accordingly, Defendant's Motion for Continuance is **DENIED**.

Plaintiff's Motion to Discharge and Dismiss Stakeholder

This interpleader action concerns \$10,825 in earnest money Defendant Gregory Bowman ("Defendant") deposited during an unsuccessful real estate transaction involving 61173 and 61163 Argyle Road, King City (collectively, the "Properties"). Plaintiff Fidelity National Title Company ("Plaintiff"), the escrow holder, deposited the funds with the Court on February 13, 2026, and seeks discharge. All named defendants, including Mr. Bowman and the Greenes, had defaults entered after failing to file responsive pleadings. Defendant has since filed multiple documents asserting his claim to the funds and seeking relief from default.

Upon considering the papers supporting and opposing Plaintiff's motion to discharge and dismiss stakeholder, the motion is **GRANTED**. As a result, the Case Management Conference set for September 15, 2026, is **CONTINUED** to December 15, 2026, at 9 a.m. in Department 14.

"Any person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims." [Code Civ. Proc. § 386, subd. (b).] The statute explicitly allows any partnership or corporation, including Plaintiff, that admits owing a debt to bring all conflicting claimants into court and require the defendants to resolve their disputes among themselves. [*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32, 42.] "[T]he interpleader proceeding is traditionally viewed as two lawsuits in one. The first dispute is between the stakeholder and the claimants to determine the right to interplead the funds. The second dispute to be resolved is who is to receive the interpleaded funds." [*Id.* at 43.] A party seeking to deposit funds after the filing of the interpleader complaint must seek a court order. [Code Civ. Proc. § 386, subd. (c).]

"As far as plaintiff is concerned, as soon as the parties defendant had appeared or defaulted, the court would determine whether it was a proper case for interpleader. The question being determined in the affirmative, upon the payment of the money into court, an order would be made discharging plaintiff from liability to all or any of the conflicting claimants, and the latter would be required to litigate their several claims among themselves." [*Interlocking Stone Co. v. Scribner* (1912) 19 Cal.App. 344, 348.] "If the relations of the parties are such that the court's decision would determine the responsibility of the interpleader plaintiff, he is for the purposes and within the scope of the code section authorizing interpleader a mere stakeholder." [*Southern Cal. Gas Co. v. Flannery* (2014) 232 Cal.App.4th 477, 487.] "After admitting liability and depositing the money or property with the court, the obligor is discharged from liability and freed from the necessity of participating in the litigation between the claimants." [*Id.* at 486.] The true test of suitability for interpleader is the stakeholder's disavowal of interest in the property sought to be interpleaded, coupled with the perceived ability of the court to resolve the entire controversy as to entitlement to that property without need for the stakeholder to be a party to the suit." [*Id.* at 486-487.]

Here, Plaintiff disavows any interest in the disputed \$10,825 [Complaint at ¶ 13.] Defendants have made conflicting claims to the funds, [*id.* at ¶¶ 3-4, 12], and it is clear that Plaintiff's involvement as a party is not necessary to determine the controversy over the \$10,825

deposited with the court. With all defendants originally in default, the Complaint's allegations — including that competing claims exist — are deemed admitted. [*City of Los Angeles v. Los Angeles Farming & Milling Co.* (1907) 150 Cal. 647, 649.] Thus, the Court finds the interpleader proper as to these funds, and the motion is **GRANTED**.

Although the Complaint requests attorney fees [Complaint at ¶ 15], the Motion for Discharge does not request them. Fees must be specifically requested in a motion or pleading. [Code Civ. Proc. § 386.6.] Plaintiff's proposed order does not include fees and no fee motion is pending. Any future fee request, if pursued, must be separately noticed and briefed.

Accordingly, upon entry of the order setting aside Defendant's default, the Court will **GRANT** the Motion to Discharge and dismiss Plaintiff as stakeholder. Discharge will be with prejudice as to claims relating to the deposited funds. The Court shall complete and sign Plaintiff's Amended Proposed Order. Plaintiff shall give notice of the Court's final order to all named defendants.